

**BERNALILLO COUNTY, NEW MEXICO
PLANNING AND DEVELOPMENT SERVICES
BOARD OF COUNTY COMMISSIONERS**

In re Appeal of PAT HAUSER, Appellant Representative, on behalf of the Maria-Diers Neighborhood Association
and Appeal Coalition

BCC Appeal Record No.: ZCOA2026-0013 | Appeal Docket No.: ZBA2026-0001
Related Case Nos.: BA2026-0001 / ZA2026-0024
Site: 9600 2nd Street NW, Albuquerque, NM 87114

ERRATA, CLARIFICATION, AND COMPLETE COUNTY-ACREAGE RECONCILIATION

Twenty Percent (20%) Protest Petition — 100-Foot Buffer

Submitted at the direction of Appellant by Eric Baca, Exclusive Filing and Communications Agent. This document supplements and does not withdraw or replace the previously filed Certification of Opposition, petition signature sheets, owner signatures, appeal materials, 100-foot-buffer parcel list, or original filing date. It adds no parcel or signature.

1. Corrections to Filed Cover Sheet

Case number. The previously filed cover sheet referred to ZA2026-0034. That was a typographical error. The correct underlying zoning case number is ZA2026-0024. The appeal docket number is ZBA2026-0001, and the BCC appeal record number is ZCOA2026-0013.

County-acreage arithmetic. The previous cover sheet stated $10.13 / 16.84 = 60.154\%$. The 16.84-acre County denominator was correct. The 10.13-acre subtotal reflects seven signed parcels. The already-listed and signed Abeyta parcel, UPC/PARID 101600431552410315, has 0.59 County acres. Including that parcel produces 10.72 signed County acres. Thus, the corrected County calculation is $10.72 / 16.84 = 63.66\%$. This correction adds no new parcel, owner, signature, or acreage category.

2. Complete 100-Foot Buffer Reconciliation

#	UPC / PARID	Address / owner of record	Acres	Status
1	101606425051510324	191 Alameda Blvd NW — Before Daylin Fuel Stop LLC	0.59	Not signed
2	101606520900130550	201 Alameda Blvd NW — East 201 Alameda Blvd Albuquerque LLC	0.50	Not signed
3	101606519209130501	9010 4th St NW — Canyon Stone & Gravel LLC	3.18	Signed, Petition affidavit
4	101606527903830528	9029 2nd St NW — Kevin Elaine Molony & Michael John Molony	1.63	Not signed
5	101606526501140126	9612 2nd St NW — Roberto Montoya	0.50	Signed
6	101606528500440101	9610 2nd St NW — Amador E. Crespin & Pauline A. Crespin	0.51	Signed
7	101606479300111614	10112 2nd St NW, Unit C — Alberto Pineda, Yvonne, Rust RVs	0.01	Signed
8	101600431552410315	9612 2nd St NW, Unit D; mailing 9614 — Norman R. Abeyta Jr. & Lorraine M. Abeyta	0.59	Signed

#	UPC / PARCEL	Address / owner of record	Acres	Status
9	101606435250910547	9641 Edith Blvd NE -- Danny T. Apodaca & Arlene M. Apodaca	0.51	Signed
10	101606435740440533	9611 Edith Blvd NE -- David Canyon Trust; Franklin John Eugene & Carmen Zila, Trustees	1.05	Signed
11	101606438545810530	9517 Edith Blvd NE -- Angie E. Duran	3.67	Signed
12	101606431140910305	No return / Tract B-2D -- Richard R. Hobson	1.06	Not signed
13	101606429049810304	101 Alameda Blvd NW -- Richard R. Hobson	1.05	Not signed
14	101606427050210302	Alameda 1421 Alameda reference -- Richard R. Hobson, Trustees, Hobson RVT	0.50	Not signed
15	101606426459710303	151 Alameda Blvd NW -- Lubina Properties LLC	0.49	Not signed
	TOTAL	15 parcels in 100-foot buffer	16.84	

3. Signed Parcels and County-Acreage Calculation

#	UPC / PARCEL	Signed parcel	Acres	Running total
1	101606438545810530	9517 Edith Blvd NE -- Angie E. Duran parcel	3.67	3.67
2	101606519202430501	9610 4th St NW -- Canyon Stone & Gravel LLC parcel	3.16	6.83
3	101606435740440533	9611 Edith Blvd NE -- Canyon Stone & Gravel LLC parcel	1.05	7.88
4	101606598500440101	9610 2nd St NW -- Canyon parcel	0.61	8.49
5	101606429353110314	9612 2nd St NW, Unit C -- Rust parcel	0.61	9.10
6	101606431552410315	9612 2nd St NW, Unit D / 9614 mailing -- Abeyta parcel	0.50	9.60
7	101606435250910547	9641 Edith Blvd NE -- Apodaca parcel	0.51	10.11
8	101606526501140128	9612 2nd St NW -- Montoya parcel	0.50	10.61
	TOTAL	Eight signed parcels	10.72	

$3.67 + 3.16 + 1.05 + 0.61 + 0.61 + 0.50 + 0.51 + 0.50 = 10.72$ County acres

4. Result Under County Acreage

Measure	County-acreage result
Total 100-foot buffer acreage, 15 parcels	16.84 acres
Signed acreage, 8 parcels	10.72 acres
Percentage represented by signed parcels	63.66%

Measure	County-acreage result
Twenty-percent threshold	3.368 acres
Signed acreage above threshold	7.352 acres

The corrected calculation is $10.72 / 16.84 = 63.66\%$. The signed acreage exceeds the County 20% threshold by 7.352 acres.

5. Request for Verification

Appellant respectfully requests that Planning and Development Services accept this errata and clarification, use the corrected County acreage calculation of 10.72 signed acres / 16.84 total buffer acres = 63.66%, and confirm whether the Twenty Percent Rule applies to this appeal.

Submitted at the direction of Appellant's:

Eric Baca

Exclusive Filing and Communications Agent for Pat Hauser

Authorized filing email: ebainm4@gmail.com

Date: _____

Certificate of Service

I certify that on _____, 2026, a true and correct copy of this Errata, Clarification, and Complete County-Acreage Reconciliation was transmitted to Sonoma County Planning and Development Services and all persons entitled to service in this appeal through the authorized filing channel.

Eric Baca

Exclusive Filing and Communications Agent for Pat Hauser

BERNALILLO COUNTY, NEW MEXICO
PLANNING AND DEVELOPMENT SERVICES — BOARD OF COUNTY COMMISSIONERS
Case No. ZBA2026-0001 / BA2026-0001 / ZA2026-0024
Site of Proposed Change: 9000 2nd Street NW, Albuquerque, Bernalillo County, New Mexico 87114
Twenty Percent (20%) Protest Petition — 100-Foot Buffer

FORM A — SUPPLEMENTAL CERTIFICATION OF PROTEST

9517 Edith Blvd NE — Successor / Surviving Owner Certification — Notarized

Parcel address	9517 Edith Blvd NE, Albuquerque, NM 87113
UPC	101808438545010530
Owner of record	DURAN RONALD T (deceased) & ANGIE E
Deeded acreage	3.6800 acres — 20.22% of the 100-foot buffer
Item cured	Petition signed by Evangelina Duran; record owners are Ronald T. Duran (deceased) and Angie E. Duran

CERTIFICATION

The undersigned states under oath:

- I am the owner, surviving co-owner, personal representative, or successor in interest of the real property identified above, which lies within 100 feet of the site of proposed change in Case No. ZBA2026-0001 / BA2026-0001 / ZA2026-0024.
- Ronald T. Duran, a record owner of the parcel, is deceased. My authority to act with respect to this parcel arises as indicated below (check one and attach supporting documentation):

- ☒ I am Angie E. Duran, surviving co-owner of record, and I sign in my own right.
- ☐ I am the duly appointed personal representative of the Estate of Ronald T. Duran, letters attached.
- ☐ I am the successor in interest to the decedent's interest by operation of law, transfer-on-death deed, or trust.
- Documentation attached:
- ☐ Other (describe): _____

3. The signature appearing on the Exhibit 26 protest petition in the name of Evangelina Duran for this parcel was given in protest of the proposed conditional use, and is hereby ratified, adopted, and confirmed on the part of the owner of record of 9517 Edith Blvd NE.

4. If the name Evangelina Duran and the name Angie E. Duran refer to the same individual, I so state here: ☒ Yes ☐ No
☐ Not applicable.

5. I protest the conditional use approved in Case No. ZA2026-0024 and request that the full deeded acreage of this parcel be counted toward the twenty percent (20%) protest calculation under Section 25 [confirm current section number with Planning staff — the County appeal portal cites Section 18.5.3] of the Bernalillo County Zoning Ordinance.

Evangelina Duran 8/18/26
Signature Date

Evangelina Duran 8/18/26
Printed name and capacity Date

ACKNOWLEDGMENT

BERNALILLO COUNTY, NEW MEXICO
PLANNING AND DEVELOPMENT SERVICES – BOARD OF COUNTY COMMISSIONERS

Case No. ZBA2026-0001 / BA2026-0001 / ZA2026-0024

Site of Proposed Change: 9600 2nd Street NW, Albuquerque, Bernalillo County, New Mexico 87114

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FORM B — SUPPLEMENTAL CERTIFICATION OF PROTEST

9610 4th St NW — Entity Signature Authority and Parcel Attribution — Notarized

Parcel address	9610 4th Street NW, Albuquerque, NM 87114
UPC	101606519202430501
Owner of record	CANYON STONE & GRAVEL LLC
Deeded acreage	3.2100 acres — 17.64% of the 100-foot buffer
Items cured	(1) Signature authority for the limited liability company; (2) petition lists the signer on two lines, 9610 and 9614 4th St NW, of which only 9610 is a buffer parcel

CERTIFICATION

The undersigned states under oath:

1. I am a member, manager, or otherwise duly authorized representative of Canyon Stone & Gravel LLC, a New Mexico limited liability company, and I am authorized to execute this certification on its behalf. My capacity is: ☐ Member ☒ Manager ☐ Other: Owner

2. Canyon Stone & Gravel LLC is the owner of record of 9610 4th Street NW, UPC 101606519202430501, containing 3.2100 deeded acres, which lies within 100 feet of the site of proposed change in Case No. ZBA2026-0001 / BA2026-0001 / ZA2026-0024.

3. The signature appearing on the Exhibit 26 protest petition in the name of Nicole Parra was given on behalf of Canyon Stone & Gravel LLC and is hereby ratified, adopted, and confirmed as the act of the company.

4. **Parcel attribution.** The petition contains two entries in the name of Nicole Parra, listed at 9610 4th St NW and 9614 4th St NW. Only 9610 4th Street NW lies within the 100-foot buffer. The company's protest is credited to 9610 4th Street NW, and the company does not claim, and the Coalition does not assert, any additional buffer acreage on account of the 9614 entry.

5. The company protests the conditional use approved in Case No. ZA2026-0024 and requests that the full deeded acreage of 9610 4th Street NW be counted toward the twenty percent (20%) protest calculation under Section 25 [provide current section number with Planning staff — the County appeal packet cites Section 18.G.3] of the Bernalillo County Zoning Ordinance.

Attach: New Mexico Secretary of State entity record, Statement of Authority, or operating agreement except evidencing the signature authority


Signature

08-18-24
Date

Nicole Parra
Printed name, title, and entity

8-18-24
Date

ACKNOWLEDGMENT

STATE OF NEW MEXICO)
) ss.

BERNALILLO COUNTY, NEW MEXICO

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FORM C — SUPPLEMENTAL CERTIFICATION OF PROTEST

9611 Edith Blvd NE, Units C & D — Trustee Capacity - Notarized

Parcel address	9611 Edith Blvd NE, Units C and D, Albuquerque, NM 87113
UPC	101606435748410533
Owner of record	BOND CANYON TRUST — FRANKLIN JOHN EUGENE & CARMEN ZITA, TRUSTEES
Legal description	Lots 1 & 2, Plat of Lands of Loyola & Ernes Gutierrez, MRGCD Map #24, containing 2.1480 acres
Deeded acreage	2.1480 acres — 11.80% of the 100-foot buffer
Item cured	Petition signed individually by John E. Franklin and Carmen Z. Franklin; title is held by Bond Canyon Trust

CERTIFICATION

The undersigned state under oath:

1. We are the acting Trustees of the Bond Canyon Trust, the owner of record of the parcel identified above, which lies within 100 feet of the site of proposed change in Case No. ZBA2026-0001 / BA2026-0001 / ZA2026-0024.
2. We are authorized under the trust instrument to act on behalf of the trust with respect to this parcel, and no co-trustee's joinder beyond our own is required.
3. The signatures appearing on the Exhibit 26 protest petition in our individual names, John E. Franklin and Carmen Z. Franklin, at 9611-C and 9611-D Edith Blvd NE, were given in our capacity as Trustees of the Bond Canyon Trust, and are hereby ratified, adopted, and confirmed as the act of the trust.
4. Units C and D are components of a single parcel of record under UPC 101606435748410533 containing 2.1480 deeded acres, and the parcel is counted once in the protest calculation.
5. As Trustees, we protest the conditional use approved in Case No. ZA2026-0024 and request that the full deeded acreage of this parcel be counted toward the twenty percent (20%) protest calculation under Section 25 (confirm current section number with Planning staff — the County appeal packet cites Section 18.G.3) of the Bernalillo County Zoning Ordinance.

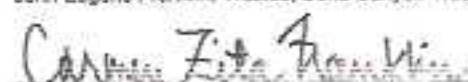
Note on acreage: the cover sheet lists a county figure of 1.05 acres for this parcel against a deeded figure of 2.1480 acres. The deeded legal description controls. Attach: certificate or abstract of trust.



John Eugene Franklin, Trustee, Bond Canyon Trust

8-18-2026

Date



Carmen Zita Franklin, Trustee, Bond Canyon Trust

Aug 18, 2026

Date

ACKNOWLEDGMENT

STATE OF NEW MEXICO)

) ss.

COUNTY OF BERNALILLO)